

RISE & SHINE ABA LLC

Empowering children to reach their full potential

SEXUAL HARASSMENT PREVENTION POLICY

For All Employees, Contractors, and Covered Individuals

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1. Purpose and Goals

Rise & Shine ABA LLC is committed to maintaining a workplace free from harassment and discrimination. Sexual harassment is a form of workplace discrimination that subjects an employee to inferior conditions of employment due to their gender, gender identity, gender expression (perceived or actual), and/or sexual orientation.

This Policy covers all forms of gender discrimination, including gender role stereotyping and treating employees differently because of their gender. Rise & Shine ABA recognizes that discrimination can be related to or affected by identities beyond gender, and that an individual's race, ability, or immigration status may compound their experience with gender discrimination.

All employees, managers, supervisors, and contractors are required to work in a manner designed to prevent sexual harassment and discrimination. The goals of this Policy are to ensure every covered individual:

- Understands their right to a workplace free from harassment and discrimination;
 - Can recognize what harassment and discrimination look like;
 - Knows how to report harassment and is protected from retaliation for doing so; and
 - Understands how Rise & Shine ABA investigates complaints.
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2. Who Is Covered

This Policy applies to all of the following, regardless of position, classification, or rank:

- All full-time, part-time, and temporary employees
- All contractors, subcontractors, vendors, and consultants
- Interns, whether paid or unpaid
- Applicants for employment
- Anyone providing services in Rise & Shine ABA's workplaces, including equipment repair, cleaning, or other contracted services

For the remainder of this Policy, the term “covered individual” refers to contractors, subcontractors, vendors, consultants, and others who are not direct employees of the Company.

This Policy applies to conduct in the workplace and to work-related conduct outside the workplace, including conduct at off-site events, during travel, on electronic communications, and while working remotely.

3. Zero Tolerance

Rise & Shine ABA has a zero-tolerance policy for sexual harassment. Sexual harassment is illegal under federal, New York State, and New York City law and is prohibited by this Company. Any employee or covered individual who engages in sexual harassment, discrimination, or retaliation will be subject to discipline, up to and including immediate termination.

In New York, harassment does not need to be severe or pervasive to be illegal. Any harassing behavior that rises above petty slights or trivial inconveniences may constitute unlawful harassment. Discipline will be proportionate to the conduct and may include education, counseling, suspension, or termination.

Retaliation against any person who reports sexual harassment in good faith, provides information, or assists in any investigation is strictly prohibited and is itself a violation of this Policy.

4. What Is Sexual Harassment

Sexual harassment is a form of gender-based discrimination that is unlawful under federal, state, and local law. It includes harassment based on sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity, and the status of being transgender. Sexual harassment is not limited to sexual contact or expressions of a sexual nature — it includes all forms of gender discrimination.

Sexual harassment is unlawful when it subjects an individual to inferior terms, conditions, or privileges of employment. There are two primary types:

4.1 Hostile Work Environment

Conduct — verbal, physical, or visual — that is of a sexual nature or directed at an individual because of their sex, gender identity, or gender expression, and that creates an intimidating, hostile, offensive, or abusive work environment. The impacted person does not need to be the intended target.

4.2 Quid Pro Quo

When a person in authority conditions employment decisions — including hiring, promotion, continued employment, hours, schedules, project assignments, or compensation — on submission to or rejection of sexual advances or sexual conduct.

4.3 Examples of Prohibited Conduct

The following are examples of conduct that may constitute sexual harassment. This list is illustrative, not exhaustive:

- Unwelcome physical contact: touching, pinching, patting, hugging, kissing, grabbing, brushing against, or poking another person's body
- Unwanted sexual comments, jokes, innuendo, propositions, or repeated requests for dates or romantic gestures
- Requests for sexual favors accompanied by implied or overt threats regarding job performance, promotion, or other employment benefits
- Sexually oriented gestures, noises, remarks, or questions about a person's sexuality, sexual experience, or romantic history
- Sex stereotyping: judging a person's conduct or personality traits based on ideas about how people of a particular sex should act or look
- Remarks about an employee's gender expression, such as wearing a garment associated with a different gender identity
- Displaying or sending sexually demeaning or pornographic images, posters, videos, or written materials, including on devices or virtual backgrounds
- Hostile actions based on gender: interfering with someone's work, sabotaging their work, bullying, name-calling, or intentional misuse of preferred pronouns
- Conduct occurring remotely: harassment via virtual platforms, messaging apps, or electronic communications is covered by this Policy

5. Who Can Be a Target

Sexual harassment can occur between any individuals regardless of sex or gender. New York law protects employees and all covered individuals described in Section 2. Harassers can be supervisors, supervisees, coworkers, contractors, vendors, clients, customers, patients, visitors, or anyone else in the workplace.

Sexual harassment does not happen in isolation. Discrimination experienced by an employee can be compounded by biases related to race, ability, immigration status, or other identities. For example, placing different demands on employees of different racial backgrounds alongside gender discrimination constitutes both racial and gender discrimination.

6. Where Harassment Can Occur

Unlawful sexual harassment is not limited to the physical workplace. It can occur during:

- Business travel or employer-sponsored events and parties
 - Calls, texts, emails, or social media communications, even on personal devices and during non-work hours
 - Remote or telehealth work sessions via virtual meeting platforms or messaging apps
 - Any other work-related context, regardless of physical location
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7. Non-Retaliation

Retaliation is unlawful. Rise & Shine ABA prohibits any action that punishes, discourages, or threatens an individual for:

- Making a complaint of sexual harassment or discrimination
- Providing information or otherwise assisting in an investigation
- Opposing harassment by making a verbal or written complaint to management
- Reporting that another employee has been harassed or discriminated against
- Encouraging a fellow employee to report harassment

Retaliation includes, but is not limited to: termination, demotion, schedule changes, exclusion from projects, reduced hours, refusal to provide a reference, or any threat of such action. These protections apply even if the underlying harassment complaint is not ultimately sustained, provided the complainant had a good-faith belief that the conduct was unlawful.

Anyone who experiences retaliation should report it through the same channels listed in Section 8.

8. How to Report

If you experience or witness sexual harassment, you are encouraged — but not required — to first tell the person engaging in the conduct that it is unwelcome and must stop. Whether or not you do so, you should report the conduct as soon as possible. Reports may be made verbally or in writing.

Reports may be made to any of the following:

Channel	Contact
Your Supervisor or Case Coordinator	Contact directly by phone, email, or in person
Director of Operations	Contact by phone or email — name and direct contact to be provided at hire
HR / Compliance Officer	info@riseandshine.nyc · (929) 460-9600

The Company will accept and investigate reports made by witnesses, not only by victims. Written complaints may use the Rise & Shine ABA Sexual Harassment Complaint Form, available from HR — however, use of the form is not required.

9. Supervisory Responsibilities

Supervisors and managers have a heightened responsibility to prevent and respond to sexual harassment. All supervisors who receive a complaint, observe potential harassment, or have reason to suspect harassment is occurring are required to report it to HR or the Compliance Officer immediately. Supervisors must not wait for a formal employee complaint.

Supervisors and managers can be disciplined for:

- Engaging in sexually harassing or discriminatory behavior themselves
- Failing to report suspected sexual harassment after becoming aware of it
- Allowing harassment to continue after knowing about it
- Engaging in any retaliation against a person who reports harassment

Supervisors must be mindful of the impact of harassment and subsequent investigations on victims. Those leading investigations must handle all complaints with sensitivity and avoid conduct that could retraumatize individuals.

10. Bystander Intervention

Every employee and covered individual is encouraged to intervene when they witness harassment. Supervisors and managers who witness harassment are required to report it.

Appropriate bystander responses include:

1. Interrupt the situation by engaging with the person being harassed to distract from the harassing behavior.
2. Enlist a third party to help intervene if you do not feel safe acting alone.
3. Document the incident by recording or taking notes to support a future investigation.
4. Check in with the person who was harassed after the incident, and let them know the behavior was not acceptable.
5. If safe to do so, name the behavior directly to the harasser as inappropriate.

Physical confrontation is never an appropriate response. When in doubt, report.

11. Investigation Procedure

All complaints or information about sexual harassment will be investigated promptly, thoroughly, and as confidentially as possible — whether reported verbally or in writing. All individuals involved, including complainants, witnesses, and those accused, are entitled to a fair and impartial investigation.

The investigation will generally include the following steps:

6. Prompt review of the allegations and assessment of scope. Any necessary interim measures — such as instructing the accused to refrain from contact with the complainant — will be implemented. If the complaint is verbal, the complainant will be asked to complete a written complaint form, or HR will prepare documentation based on the verbal report.
7. Collection and preservation of relevant documents, emails, phone records, and other evidence.
8. Interviews of all parties involved, including witnesses.
9. Preparation of written documentation of the investigation, including a list of documents reviewed, summaries of witness statements, a timeline of events, and the basis for the final determination.
10. Prompt notification of the outcome to the complainant and the accused, to the extent permitted by law.
11. Implementation of corrective action, up to and including termination, if a violation is found.
12. Notification of the complainant's right to file an external complaint, as described in Section 12.

Investigation records are maintained securely and confidentially. The Company will take disciplinary action against anyone who retaliates against employees who file complaints, support another's complaint, or participate in harassment investigations.

12. Legal Protections and External Remedies

In addition to the internal reporting process above, employees and covered individuals may file complaints with the following governmental entities. Filing internally with Rise & Shine ABA does not extend or waive external filing deadlines.

New York State Division of Human Rights (DHR)

Complaints may be filed within three years of the most recent incident. DHR will investigate and may award monetary damages, attorney's fees, civil fines, and other relief.

- Phone: 1-800-664-1220 · Sexual harassment hotline: 1-800-HARASS3
- Web: www.dhr.ny.gov · Complaints: dhr.ny.gov/complaint

- Main office: NYS Division of Human Rights, One Fordham Plaza, 4th Floor, Bronx, NY 10458

U.S. Equal Employment Opportunity Commission (EEOC)

Complaints must generally be filed within 300 days of the most recent incident. Filing with DHR automatically preserves the right to proceed in federal court.

- Phone: 1-800-669-4000 (TTY: 1-800-669-6820)
- Web: www.eeoc.gov · Email: info@eeoc.gov

New York City Commission on Human Rights

Employees who work in New York City may file complaints within one year of the incident.

- Phone: 311 or (212) 306-7450
- Address: Law Enforcement Bureau, 22 Reade Street, 1st Floor, New York, NY 10007
- Web: www.nyc.gov/cchr

Local Law Enforcement

If the harassment involves unwanted physical touching, coerced confinement, or coerced sex acts, the conduct may constitute a crime. Those wishing to pursue criminal charges should contact their local police department.

13. Annual Training

Rise & Shine ABA provides annual interactive sexual harassment prevention training to all employees, as required by New York State Labor Law §201-g. Completion is mandatory. Training must be completed:

- Within the onboarding window for all new employees; and
- Annually thereafter for all active employees.

Training completion certificates are maintained in the personnel file. Failure to complete required training on time may result in suspension of system access and disciplinary action.

14. Legal Notice

Adoption of this Policy does not constitute a defense to charges of unlawful sexual harassment. Each claim will be determined in accordance with applicable legal standards, with due consideration of the particular facts and circumstances. Rise & Shine ABA reserves the right to update this Policy at any time; material updates will be communicated to all employees and covered individuals.

This Policy satisfies New York State Labor Law §201-g and incorporates the NYS model sexual harassment prevention policy. No section of the NYS model policy has been omitted. The examples provided are illustrative and not exhaustive.

15. Acknowledgment of Receipt

By signing below, I confirm that:

- I have received and read Rise & Shine ABA's Sexual Harassment Prevention Policy (v1.0, effective May 2026).
- I understand that sexual harassment is prohibited and that violations may result in discipline, including termination.
- I understand my right to report harassment without fear of retaliation.
- I understand my right to file a complaint with governmental agencies as described in Section 12.
- I understand that annual sexual harassment prevention training is required.

Employee / Contractor

Full Name (Print)

Position / Title

Signature

Date Signed

Office Use Only

Reviewed By (HR / Compliance Officer)

Date Filed in Personnel Record
